
You don't have to understand everything about probate today. You simply need a place to begin.

Understanding Probate When a Home Is Involved

A plain-language introduction to homes and residential real estate in Florida probate

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A note before you begin: This publication offers general, plain-language information about homes in Florida probate. It is not legal, tax, or financial advice, and reading it does not create a professional relationship. Questions specific to an estate belong with the probate attorney and other appropriate professionals.

A road map for the home during Florida probate

Florida probate is not a single decision or event. It is a process in which legal authority is established, estate assets are identified and protected, and the people involved gather information before deciding what happens next. When a home is involved, the journey commonly includes the following questions:

- **Who has authority to act?** Opening the estate, appointing the Personal Representative, and issuing letters of administration establish who may act on behalf of the estate.
- **What needs attention right away?** The home may need to be secured, insured, maintained, checked regularly, and protected from avoidable loss.
- **Could Florida homestead affect the home?** Homestead status can influence who receives the home, how the will applies, and who has authority to make decisions.
- **What is the home worth?** A date-of-death valuation may serve a different purpose from a current market analysis or appraisal.
- **What choices are available?** The family may eventually consider keeping, transferring, renting, or selling the home, depending on legal authority, finances, condition, and family priorities.
- **How does the chosen direction move forward?** The probate attorney clarifies authority and required approvals, while other professionals provide tax, financial, appraisal, or real estate guidance as needed.

This publication follows that path. It is not a complete explanation of Florida probate. It focuses on the practical questions that arise around a home and shows where legal, tax, financial, appraisal, and real estate guidance may enter the process.

How long does probate usually take?

Florida probate generally moves along one of two paths, and knowing which one applies can shape expectations for the home as much as anything else.

The simplified path — summary administration — is available for smaller estates, or when the decedent has been gone more than two years, regardless of value. It skips several formal

steps and often the mandatory creditor period described below, which is part of why it can finish in a few weeks to a few months.

The standard path — formal administration — is the full court-supervised process. A Personal Representative is appointed, Letters of Administration are issued, and a required waiting period allows creditors to come forward before the estate can move toward closing. This path more commonly runs six to twelve months, sometimes longer.

Florida's 67 counties each set their own pace within these general patterns, so a particular estate can move faster or slower than the ranges above. The probate attorney can confirm which path applies and where a given estate currently stands within it.

What happens to the home now?

If you are reading this, you may have been named in a will or appointed by the court to serve as the estate's Personal Representative, or you may be helping someone who has. A home may now be part of the estate, and questions about what happens next may already be piling up.

Some matters may need attention quickly, while other decisions can wait until the right information and authority are in place. In the meantime, the home may need to be secured, insured, maintained, and evaluated.

Every estate is different. The legal status of the home, including whether Florida homestead may apply, can affect who has authority to act and what options are available. Those legal questions belong with the probate attorney.

Why can't every decision be made right away?

A family may know what it hopes to do with a home long before anyone has legal authority to carry out that plan. In Florida, the court appoints a Personal Representative and grants letters of administration. Until that authority is established, major decisions involving estate assets may be premature.

Once appointed, the Personal Representative generally has responsibility for managing, protecting, and preserving assets administered through the estate. Protected homestead is treated differently, which is one reason the probate attorney can clarify the home's legal status before the family assumes the usual estate rules apply.

Waiting does not mean ignoring the home. Practical steps may still be needed to protect it, including checking access, insurance, utilities, maintenance, and signs of damage. The probate attorney can help identify who may take each step and whether court approval or additional documentation is required.

The important distinction is between protecting the home and making a final decision about it. Preservation may be urgent. A sale, transfer, rental, or distribution may require more information and legal authority.

Who takes care of the home now?

The answer depends on the home's legal status and who has authority to act. For most assets administered through the estate, the court-appointed Personal Representative is responsible for managing, protecting, and preserving them during administration.

Protected homestead is different. If a home reasonably appears to be a protected homestead and is not occupied by someone with an interest in it, Florida law allows, but does not require, the Personal Representative to take possession for the limited purpose of preserving, insuring, and protecting it while its status is being determined.

From a practical standpoint, someone may need to monitor access, locks, insurance, utilities, mail, lawn or pool care, air conditioning, leaks, storm preparation, and other signs of damage. Those responsibilities are best handled by someone with proper authority, and clear records of expenses and decisions can help everyone understand what has been done.

When several family members are involved, a simple division of responsibilities can prevent duplicated work and misunderstandings. The probate attorney can help clarify who may act, what expenses may be paid from estate funds, and whether any step requires court approval.

How do we protect the home while probate is ongoing?

An unoccupied home can develop problems quietly. Protection starts with a clear plan for access, insurance, regular checks, and routine care, all handled by someone with proper authority.

One of the first calls may be to the insurance agent or carrier. A death, change in occupancy, or extended vacancy can affect coverage, and the policy may have conditions that are easy to overlook. The goal is not to assume the existing policy continues unchanged, but to confirm what coverage is in place and what the insurer requires.

Regular visits can catch issues before they become expensive. A simple written schedule can cover locks and windows, plumbing leaks, air conditioning, electrical problems, storm preparation, lawn and pool care, mail, pests, and signs that someone has entered the home.

Utilities often require judgment rather than a blanket decision. Electricity and water may be needed to protect the home, operate the air conditioning, maintain security systems, and allow

inspections or repairs. Any changes can be coordinated with the Personal Representative and probate attorney.

Personal belongings may also need to be addressed as part of the estate. Before anything is removed, donated, distributed, or discarded, the probate attorney can clarify who has authority and whether the will, court orders, or other instructions affect the contents. Photographs, an inventory, and written records provide a useful starting point before anything is moved.

Protecting the home is less about making it perfect and more about preventing avoidable loss while the estate determines what happens next.

Could the home be protected homestead?

In Florida, the word homestead can carry legal consequences beyond the familiar property-tax exemption. When an owner dies, protected homestead status may affect who receives the home, how the will is applied, and who has authority to make decisions about the home.

Whether the residence qualifies as homestead depends on facts such as ownership and use as the owner's permanent home. What happens next can also depend on how title was held and whether a spouse or descendants survived the owner. Florida law limits how homestead may be left by will in certain family circumstances.

Because protected homestead is treated differently from other real estate administered through the estate, the Personal Representative may not have the same possession or control that applies to other estate assets. The will alone may not determine what happens to the home.

The probate attorney may ask for the deed, the will or trust, marital and family information, and details about how the home was occupied. Those facts help the attorney determine whether homestead protections apply and explain who has the authority to preserve, transfer, or sell the home.

The practical point is not to decide the homestead question yourself. It is to recognize that the question belongs with the probate attorney before the family commits to a sale, transfer, rental, or distribution.

How do we know what the home is worth?

The first step is understanding why the value is needed. A value connected to the date of death may serve a different purpose from an estimate of what the home could sell for today. The probate attorney, accountant, or tax professional can identify whether a formal appraisal is required and the appropriate valuation date.

For current decision-making, a real estate professional can prepare a comparative market analysis using recent sales, active competition, neighborhood trends, and the home's condition. A licensed appraiser provides an independent appraisal when a formal valuation is requested or required.

Condition matters. Deferred maintenance, needed repairs, outdated finishes, occupancy, personal belongings, and access limitations can affect both marketability and price. Before spending estate funds on improvements, it is useful to compare the likely as-is value with the possible return from repairs or preparation.

Value is not always a single permanent number. It can change with the market, the home's condition, and the amount of time available to sell. The most useful valuation is one matched to the decision the estate is trying to make.

What happens when the family is ready to make decisions?

Once the home's legal status and decision-making authority are clear, the family can compare the practical choices: keep it, transfer it, rent it, or sell it. The deed, will or trust, mortgage, liens, ongoing expenses, home condition, current value, and the beneficiaries' goals can all shape that discussion.

Timing matters here too. Valid claims against the estate are typically addressed before funds can be fully distributed, and a sale that closes earlier in the process may still need to hold proceeds until that step is complete. The probate attorney can confirm where a particular estate stands in that process and what it means for when the family actually receives funds.

Keeping or transferring the home may involve questions about who will take title, who will pay the mortgage and carrying costs, and how the distribution affects other beneficiaries. The legal and tax consequences are best reviewed with the appropriate professionals before title changes.

Renting may preserve the home while providing income, but it also creates continuing responsibilities for insurance, repairs, management, accounting, and tenants. The probate attorney can confirm the estate's authority to lease and whether renting fits the administration timeline before a lease is signed.

If selling is the chosen direction, the probate attorney can confirm who must sign and whether court authorization or confirmation is required. Closing typically depends on the Letters of Administration and, once a sale is complete, a deed executed by the Personal Representative, documentation a title company will want to see well before the closing table. The real estate

plan can then address pricing, repairs versus an as-is sale, personal belongings, access, disclosures, showing arrangements, and a timeline that works with the estate.

The best decision is rarely based on price alone. It balances legal authority, financial consequences, family priorities, the home's condition, and the time and effort each option requires.

Questions families commonly ask

Can the home be listed before probate is finished?

Sometimes. The answer depends on the home's title and legal status, the authority granted to the Personal Representative, the terms of the will, and whether court action is required. The probate attorney can confirm who may sign and when the home can be marketed and sold.

Can one beneficiary decide what happens to the home?

Not simply because that person is a beneficiary. Authority may rest with the Personal Representative, the people who inherited the home, or the court, depending on the circumstances. Agreement among family members is helpful, but it does not replace the legal authority required to act. The probate attorney can clarify whose approval or signature is required.

Should the estate make repairs before selling?

Not automatically. The probate attorney can clarify whether estate funds and authority are available. A real estate professional can then compare the home's likely as-is value with the cost, time, and expected market benefit of repairs or preparation. Some homes benefit from improvements; others are better positioned for an as-is sale.

What happens to the furniture and personal belongings?

Before items are removed, donated, distributed, or discarded, the probate attorney can clarify who has authority and whether the will, court orders, or other instructions affect the contents. Photographs, an inventory, and written records can reduce confusion and help coordinate family distribution, donations, an estate sale, or a cleanout.

Who pays the expenses while the home is being handled?

The answer can depend on whether the home is an estate asset or protected homestead, who is responsible for the expense, and whether the cost benefits the estate or the people receiving the home. Clear receipts and records can document what was paid, and reimbursement questions belong with the probate attorney or accountant.

Can a real estate professional help before the family decides to sell?

Yes. My role can begin before the family has decided whether to sell. Once the probate attorney has clarified who may authorize access and decisions, I can help the family understand the home, the market, and the practical work each option may involve.

- **Review the home and its condition.** I can walk through the home, note visible maintenance concerns, access or occupancy issues, and the amount of personal belongings that may affect the next steps.
- **Develop a current market picture.** I can prepare a comparative market analysis, review nearby sales and active competition, explain likely buyer expectations, and discuss how the home may be received in its present condition.
- **Compare the practical options.** I can help the family consider an as-is sale versus repairs or preparation, the likely time and effort involved, and practical needs such as an estate sale, donations, cleanout, landscaping, utilities, photography, and vendor access. That information may also help when comparing a sale with keeping, transferring, or renting the home.
- **Create a plan when a direction is chosen.** If the family decides to sell, I can develop the pricing, preparation, marketing, showing, communication, and closing plan while coordinating with the probate attorney and title professionals on authority, signatures, and required documentation.

The goal is not to push the family toward a sale. It is to provide clear real estate information early enough for an informed decision. I do not provide legal, tax, or financial advice; those questions remain with the appropriate professionals.

Moving forward

Probate does not require every question about the home to be answered at once. The immediate priorities are usually to confirm authority, determine whether homestead may apply, protect the home, maintain insurance and essential services, document its condition and contents, and gather the information needed for later decisions.

As the legal and financial picture becomes clearer, the family can evaluate the available options with the probate attorney and other appropriate professionals. Market and condition information can then help the family compare choices or prepare for a sale.

Good decisions begin with reliable information, clear authority, and enough time to understand the consequences of each option.

This is general information, not legal, tax, or financial advice. Every estate is different, and Florida's 67 counties move at different speeds — your probate attorney is the source of truth for your situation.

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